

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/28/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 4/15/26, a Motion to enter judgment pursuant to stipulation. The Motion was apparently served on Defendant by mail.

The Motion is unopposed.

This is the third time Plaintiff has made the Motion. The two times prior, this court found that there was a lack of service. The first time, 1/27/26, this court found that Plaintiff had served the Kazerouni Law Group, with a mailing address in Nevada, and that there was no record of this attorney ever representing the Defendant. The second time, 4/7/26, this court found that Plaintiff had not made any subsequent effort to provide notice to the defendant.

Now, for the third time, Plaintiff has failed to provide proper notice. The proof of service, attached to the Motion filed on 4/15/26, indicates mail service on the Defendant at a

Richmond, California address. Yet it is unclear how Plaintiff arrived at this address. There are no filings in the docket to corroborate this. The proof of service of process indicated service on counsel, the Moore Law Group, out of Santa Ana, California.

It is unclear why Plaintiff neglected to serve the Moor Law Group.

Disposition

This Motion will be dropped.

2. 9:00 AM CASE NUMBER: L24-02267

CASE NAME: CITIBANK, N.A. VS. KARLA GOMEZ

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion, on 2/6/26, to set aside notice of settlement and enter judgment pursuant to stipulation. The Motion was originally scheduled for 5/5/26, but on that date, this court found that Plaintiff had not properly served Defendant with notice and continued the Motion to 7/28/26. The court also ordered Plaintiff to provide notice to the Defendant.

As of this writing, there is no evidence that Plaintiff has provided any notice to Defendant of the Motion or of the hearing.

Disposition

This Motion will be dropped.

3. 9:00 AM CASE NUMBER: L25-07986

CASE NAME: CAPITAL ONE, N.A. VS. TIFFANY HOLLISTER

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY:

***TENTATIVE RULING**

Plaintiff filed a Motion, on 1/22/26, to set aside dismissal and enter judgment under stipulation. The Motion hearing was scheduled for 4/28/26, and on that date, this court found that Plaintiff had not provided notice to Defendant. Specifically, though the service was purportedly done by mail, there was no evidence to corroborate that the mailing address (in Richmond) was in fact that of Defendant.

This court continued the Motion to 7/28/26 and ordered Plaintiff to provide notice to Defendant.

For the hearing on 7/28/26, Plaintiff filed a proof of service on 5/1/26. However, the proof indicates mail service at the same address in Richmond. And, once again, there is no evidence that this is in fact the address of Defendant.